

LARSON v. MARK TWAIN MEDICAL CENTER

19CV44062

DEFENDANT'S MOTION TO DECERTIFY CLASSES

This is a wage/hour dispute involving alleged rounding and rest/meal deficiencies suffered by those in the employ of Mark Twain Medical Center. Before the Court this day is a defense motion to decertify the two classes previously certified (see Minute Order dated 05/20/22) based solely on the contention that the new substituted plaintiff is not typical enough to represent the classes.

This Court previously found that the initially-proffered class representative (Lorraine Larson) was not sufficiently typical to faithfully represent the classes because:

1. She had a pre-existing, and unrelated, adversarial relationship with the defendant, having lost her job under a discipline cloud;
2. She had an office with a door, and could eat at her workstation, removing her entirely from the concern regarding travel time tardiness;
3. She had a settlement agreement with defendant that could detour, if not derail, the focus on class concerns.

This Court gave plaintiff and counsel 30 days to find a replacement representative. Counsel complied with this directive, filing an amendment to the complaint, substituting in Barbara Kelling as the new proposed class representative.

Defendant contends that Barbara Kelling is also not sufficiently typical to faithfully represent the classes because:

1. Although having worked for defendant for nearly eleven (11) years, she was released from a new salaried position she held for just under three months;
2. She was unaware of defendant's tardiness policy;
3. She did not work on patient charting during her meal breaks.

First, even if Ms. Kelling were not sufficiently typical, decertification is not the answer. Decertification is generally appropriate when there has been a material change in the law or the manageability of the action since the class was certified making the case no longer amenable to class treatment. (See *Duran v U.S. Bank Nat'l Ass'n* (2014) 59 Cal.4th 1, 29; *Williams-Sonoma Song-Beverly Act Cases* (2019) 40 Cal.App.5th 647, 657-658; *Lubin v The Wackenhut Corp.* (2016) 5 Cal.App.5th 926, 935.) A motion to decertify under CRC 3.764 requires the defendant to negate the conditions already found to exist for class certification, which defendant has not done. (See *Williams v Superior Court* (2013) 221 Cal.App.4th 1353, 1360.) Defendant here is only concerned with the adequacy of the new proposed class representative, which can be easily cured if the "perfect" representative came forward. Although the procedural mechanism for

this limited type of challenge is imprecise, the issue often presents by way of demurrer, motion to strike, or motion for summary judgment, which thereafter (if successful) frequently results in additional time for plaintiff to find a suitable replacement. (See *Payton v. CSI Elec. Contractors, Inc.* (2018) 27 Cal.App.5th 832, 848; *Jones v. Farmers Insurance Exchange* (2013) 221 Cal.App.4th 986, 999; *Silva v Block* (1996) 49 Cal.App.4th 345, 349-352; in accord, *Espejo v. The Copley Press, Inc.* (2017) 13 Cal.App.5th 329, 341.) There could, in theory, come a point in time when leave to find another representative might be fruitless – and therefore *dismissal* as a headless class proper – but in this case that time has not yet arrived. (See, e.g., CCP §430.41(e)(1).)

Second, plaintiff has met its nominal burden of persuasion to demonstrate that Ms. Kelling is adequate. To be sufficiently typical to serve as a class representative, the proposed plaintiff must share many – but not necessarily all – of the traits common to the class members, and have a similar incentive and litigation objective as the other class members. (See, e.g., *Fireside Bank v. Superior Court* (2007) 40 Cal.4th 1069, 1091; *Jaimez v. DAIOWS USA, Inc.* (2010) 181 Cal.App.4th 1286, 1307; *Watkins v. Wachovia Corp.* (2009) 172 Cal.App.4th 1576, 1592; *In re BCBG Overtime Cases* (2008) 163 Cal.App.4th 1293, 1297; *J.P. Morgan & Co., Inc. v. Superior Court* (2003) 113 Cal.App.4th 195, 212; *Caro v. Procter & Gamble Co.* (1993) 18 Cal.App.4th 644, 664.)

In terms of traits, Ms. Kelling was an hourly employee, like all the others, for more than a decade before accepting her promotion to the ranks of exempt employees. She was subject to the same travel time tardiness issue facing all employees who did not have a private office with a door for many of the years within the class period. While she may not have known about the formal tardiness rule, she apparently still took her clocking-in requirements seriously. Whether her respect for the time clock was motivated by a desire to avoid discipline, or merely the product of good work ethic, she was tied to the time clock like everyone else – and lost time accordingly.

As for her motivation and litigation objectives, although she may harbor some animosity for leaving her established regular position to try her hand as a probationary “clinical informatics nurse,” the evidence is insufficient to permit an inference that she harbors a different incentive or litigation objective. She has arguably suffered some loss of paid time based on the initial report from Jarrett Gorlick. She has confirmed in a declaration her typicality, her commonality, and her focus, dedication, and commitment to the cause. It is hard to see how anyone else would be more suited to serve as a class representative – and why the defense would insist on plaintiff looking for an even better representative. Of course, plaintiff is free to continue looking for that “perfect” representative, and perhaps one will surface during the course of discovery. Until then, Ms. Kelling will do.

Motion to decertify is DENIED without prejudice to the filing of a proper motion to decertify one or both classes based on changed circumstances. Plaintiff’s Motion for Class Certification is GRANTED. The Clerk shall provide notice of this Ruling to the

parties forthwith. Plaintiff to prepare formal Orders pursuant to CRC 3.1312 in conformity with this ruling.